

02:00 PM

24-CLJ-06011

WELLS FARGO BANK, N.A. VS. HECTOR MARTINEZ SANCHEZ

LINE 2

WELLS FARGO BANK, N.A.
HECTOR MARTINEZ SANCHEZ

EDGAR B. LOPEZ
PRO PER

PLAINTIFF: WELLS FARGO'S MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED

TENTATIVE RULING:

The unopposed motion is denied without prejudice for lack of proof that defendant was given proper notice of the hearing date. The proof of service indicates the moving papers were served by mail on December 23, 2025. The motion was filed on December 26, 2025, at which time the hearing date on the notice of motion was changed to September 21, 2026. To date, the court's record does not reflect the filing or service of an amended notice.

If, however, Plaintiff notices its appearance, appears and provides proof that Defendant was given proper notice of the hearing date, the motion would be granted. Plaintiff has provided sufficient proof of serving the underlying discovery and the declaration of Edgar B. Lopez states that no response has been received to date.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court and will be reflected in the minutes. No formal order will follow.

02:00 PM

25-CIV-00841 SAMUEL DOWOON LEE VS. SUNIL EVANS, ET AL.

LINE 3

SAMUEL DOWOON LEE
SUNIL EVANS

QUINLAN S. TOM
JONATHAN D. KINTZELE

PLAINTIFF: SAMUEL DOWOON LEE'S DEMURRER TO CROSS-COMPLAINANTS MARVIN EVANS, SUNIL EVANS, AND GRAND ELECTRIC AND CONSTRUCTION INC.'S CROSS-COMPLAINT

TENTATIVE RULING:

Plaintiff/Cross-Defendant Samuel Doowon Lee's Demurrer to each cause of action in the Cross-Complaint of Marvin Evans, Sunil Evans, and Grand Electric and Construction, Inc. is SUSTAINED-in-part with leave to amend, as to the Second Cause of Action for Fraud in the Inducement, Fourth Cause of Action for Fraud, and Ninth Cause of Action for Negligent Misrepresentation, Tenth Cause of Action for Conversion, Eleventh Cause of Action for Intentional Interference, Twelfth Cause of Action for Negligent Interference and Thirteenth Cause of Action for Unjust Enrichment; SUSTAINED-in-part without leave to amend as to the First Cause of Action for Conspiracy, Seventh Cause of Action for Negligence and Fourteenth Cause of Action for Preliminary Injunction; and OVERRULED-in-part, as to the remaining causes of action as follows:

First Cause of Action for Conspiracy

Conspiracy is not an independent cause of action; it is a theory for extending tort liability to multiple defendants who already owe a duty. (*Applied Equip. Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal. 4th 503; *Faunce v. Cate* (2013) 222 Cal. App. 4th 166.) Cross-Complainants concede the point. (Opp. at p. 6.)

The Demurrer to this cause of action is accordingly SUSTAINED without leave to amend.

The Fraud Causes of Action – Second Cause of Action for Fraud in the Inducement, Fourth Cause of Action for Fraud, and Ninth Cause of Action for Negligent Misrepresentation

Fraud must be pled with specificity, and facts must be alleged showing “how, when, where, to whom, and by what means the representations were tendered,” with heightened requirements where the defendant is a corporation, or speaks for a corporation. (*Cansino v. Bank of Am.* (2014) 224 Cal. App. 4th 1462, 1469, quoting *Lazar v. Superior Ct.* (1996) 12 Cal. 4th 631, 638.) The same specificity governs fraudulent concealment, though the inquiry shifts to the concealment elements (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1.) Negligent misrepresentation is a species of fraud subject to the same particularity standard.
